

HOUSE No. 364

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Finn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the collection of debt.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Finn</i>	<i>6th Hampden</i>	<i>1/15/2025</i>
<i>Ryan M. Hamilton</i>	<i>15th Essex</i>	<i>3/27/2025</i>

HOUSE No. 364

By Representative Finn of West Springfield, a petition (accompanied by bill, House, No. 364) of Michael J. Finn relative to the collection of debt. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the collection of debt.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Notwithstanding any general or special law to the contrary, a debt collector
2 or creditor as defined by Section 24 of Chapter 93 of the General Laws, shall be permitted to
3 accept payment of a debt, or any portion thereof, by postdated check or other similar instrument
4 with the following exceptions:

5 (1) A debt collector or creditor shall not accept from any person a check or other payment
6 instrument postdated by more than five days unless such person is notified in writing of the debt
7 collector's intent to deposit such check or instrument not more than ten, nor less than three, days,
8 excluding legal public holidays identified in 5 U.S.C. 6103(a), Saturdays, and Sundays, prior to
9 such deposit.

10 (2) A debt collector or creditor shall not solicit any postdated check or other postdated
11 payment instrument for the purpose of threatening or instituting criminal prosecution.

- 12 (3) A debt collector or creditor shall not deposit or threaten to deposit any postdated
13 check or other postdated payment instrument prior to the date on such check or instrument.